

VCU335769 Sierra Range Construction, a California corporation vs. Lower Tule River Irrigation District, a public entity

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-03

Motion: Demurrer

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Re: Sierra Range Construction, a California corporation vs. Lower Tule River Irrigation District, a public entity

Case No.: VCU335769

Date: September 3, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Demurrer

Tentative Ruling: To sustain the demurrer without leave to amend

Facts

The complaint in this matter alleges Defendant is a public entity. (Complaint ¶12.) Further that on or about March 27, 2024, the Plaintiff and Defendant entered into a Contract Agreement Installation of Protective Fencing ("Agreement"). (Complaint ¶8.)

Plaintiff alleges "Under the Agreement, LTRID had a duty to act with good faith and fair dealing which obliged it to refrain from taking any action that would destroy or injure the other party's right to receive the benefits of the contract." (Complaint ¶12.)

Further that "On August 1, 2024, Plaintiff was informed via email from D. Vink at Six-33 Solutions LLC, an agent of LTRID, that "Legal had advised them they need to end the current contract..." and attached to that email was correspondence indicating LTRID was "reviewing the remaining items for potential modifications and terminating the current agreement." The attached correspondence was undated." (Complaint ¶14.)

Additionally, that "Under the terms of the Agreement, termination was proper only for: Failure to supply an adequate working force, or material of proper quality, or in any other respect to prosecute the work with the diligence and force specific by the contract, is grounds for termination of the Contractor's control over the work and for taking over the work by the District." (Complaint ¶16.)

The project was rebid, with sealed bids due on or before 12:00 p.m. on September 27, 2024, with bid opening on October 1, 2024 at 1:00 p.m. (Complaint ¶¶17, 18.)

On November 18, 2024, Plaintiff, through its counsel submitted a public records act request to Defendant and on November 26, 2024, Defendant responded to the records request and produced documents. (Complaint ¶¶19, 20.)

Plaintiff then alleges that “After Plaintiff obtained documents on November 26, 2024, Plaintiff learned LTRID had terminated the contract in bad faith.” (Complaint ¶21.)

Plaintiff alleges further “On November 25, 2025, Plaintiff submitted a Government Claim to LTRID which identified a claims accrual date of November 26, 2024 and described the claims as improper termination and improper post-bid bid security acceptance. This Government Claim was not responded to by LTRID and was rejected as a matter of law.” (Complaint ¶26.)

Based on the above, Plaintiff brings a single cause of action for breach of contract.

Defendant demurs for failure to plead compliance with the tort claim presentation requirements, that the discovery rule does not apply to extend accrual of the cause of action and notes this Court’s ruling denying Plaintiff’s application for leave to file a late claim under Government Code section 946.6.

The Court’s ruling noted:

“As such, the late claim application process has no effect here, where the claims are related to “any other cause of action” and allow a one year presentation period from the date of accrual. In other words, there is no late claim application process for claims that do not arise from death or injury to person or personal property.

This finding is consistent with the statutory scheme. If a claim for “any other cause of action” must be presented within one year of accrual and a late claim application must be presented no later than one year from accrual, the deadlines for presentation and late claim application overlap entirely.

Under Government Code section 946.6(a), this petition for relief can only be made “[i]f an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6...”

Here, there is no late claim application available under section 911.6 and therefore no relief from the denial of the late claim application available.”

In opposition, Plaintiff argues that its discovery of the “wrongful nature” of Defendant’s conduct on November 26, 2024 starts the accrual of the cause of action.

Authority and Analysis

California Government Code section 911.2 requires that “A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action.”

Presentation of such a claim is a condition precedent to filing a suit against the public entity. (Cal. Govt. Code, § 945.4.)

Additionally, compliance with the presentation requirement must be stated in the complaint. (Dilts v. Cantua Elementary School Dist. (1987) 189 Cal.App.3d 27, 31 [holding "In those circumstances in which a claim must be presented, the plaintiff must allege compliance or circumstances excusing compliance, or the complaint is subject to general demurrer."].)

"The standard elements of a claim for breach of contract are: '(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

"A cause of action for breach of contract does not accrue before the time of breach." (Romano v. Rockwell Internat., Inc. (1996) 14 Cal.4th 479, 488)

Here, the allegations of the complaint indicate the contract at issue was terminated (that is, breached) August 1, 2024. (Complaint ¶14.)

The subsequent public records request and discovery of alleged improper bidding procedures have no affect on the accrual of breach of contract. Plaintiff need not know why the contract was breached to bring a claim for breach of contract. All elements of breach were present August 1, 2024 when termination occurred.

As such, the last day to present the tort claim for breach of contract was August 1, 2025, one year from the date of the breach.

The complaint alleges the claim was presented November 25, 2025, which is beyond the August 1, 2025 date.

Therefore, the Court finds a failure to allege compliance with the tort claim presentation statute under the facts alleged in the complaint.

The Court, as such, sustains the demurer without leave to amend.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.